

Smt Rizwana Parvez v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 10 February 2023 · WRIT - C No. 989 of 2023 · **Writ withdrawn; clause 4.39 reconnection application to be considered as per Code.**

HEADNOTE

Writ for forthwith restoration of an existing connection disposed of as withdrawn, with liberty to apply for reconnection under paragraph 4.39 of the Electricity Supply Code, 2005; any such application to be considered by the corporation as per the Code, expeditiously.

FACTUAL SUMMARY

Smt Rizwana Parvez petitioned the Allahabad High Court for a mandamus directing the electricity corporation to restore supply to her connection, service number 674333899, and to decide her representation dated 22 December 2022. The State of Uttar Pradesh and five others were arrayed. On 2 February 2023 the Court directed service on the second respondent and listed the matter afresh. On 10 February 2023 counsel for the corporation told the Court there was no impediment to providing electricity connection or supply, and that the petitioner should apply for reconnection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39

reconnection on an application under paragraph 4.39

HOLDING

A writ seeking forthwith restoration of an existing electricity connection, and a decision on the consumer's representation, is disposed of as withdrawn where the licensee states there is no impediment to supply and the consumer is left at liberty to apply for reconnection under paragraph 4.39 of the Electricity Supply Code, 2005. If that application is made, the licensee shall consider it as per the Code, expeditiously. ¶ 2

PRINCIPLE TAGS

reconnection-available-after-permanent-disconnection-clause-4.39 The corporation pointed the petitioner to paragraph 4.39 for reconnection and stated there was no impediment to supply. The Court left her to apply under that paragraph and directed that the application be considered as per the Code. It did not find the earlier disconnection to have been permanent, and it did not order restoration. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SUPPLY TO SERVICE CONNECTION NO. 674333899 MUST BE RESTORED, AND THE REPRESENTATION DATED 22.12.2022

Left to a paragraph 4.39 reconnection application, to be considered as per the Code. The writ was withdrawn with that liberty and did not grant or refuse restoration. ¶ 2